

23STCV15395 23STCV15395

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV15395 Hearing Date: September 15, 2026 Dept: D

ANA BAHENA, et al. v. ZUKRE,
et al.

CASE NO.: 23STCV15395

HEARING: 9/15/2026 @ 9:30 a.m.

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TENTATIVE ORDER

The Court grants plaintiff Ana
Bahena's motion to strike defendant Zukre's Answer.

Moving party(s) to give notice.

Plaintiff Ana Bahena
("Plaintiff") moves for an order striking defendant Zukre's unverified Answer
because it was filed by a non-attorney.

Background

On June 30, 2023, Plaintiff filed
a complaint against defendant Zukre and Does 1 to 15 alleging a fraud cause of
action. On October 10, 2023, defendant Zukre ("Defendant") filed its Answer.

On June 11, 2026, Defendant filed
the instant motion. No opposition has been received.

Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. . . .” (Code Civ. Proc., § 435, subd. (b)(1).) A court may “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (b).)

Meet and Confer

Plaintiff has not shown that she met and conferred prior to filing the motion to strike as required by Code of Civil Procedure section 435.5, subdivision (a). (Code Civ. Proc., § 435.5, subd. (a) [“Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike”].) Because “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike” the court considers the motion on its merits. (Code Civ. Proc., § 435.5, subd. (a)(4).)

Analysis

Plaintiff argues that Erwing J. Cuevas Diaz cannot file an answer on behalf of Defendant because he is not an attorney. The court agrees.

Here, the answer was filed by Zukre in pro per and signed by “Erwing J. Cuevas Diaz – Owner.” “[A] corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Thus, Defendant cannot represent itself nor through its owner Erwing J. Cuevas Diaz. Accordingly, the Court strikes Defendant’s Answer.

Conclusion

The Court grants plaintiff Ana
Bahena's motion to strike defendant Zukre's Answer.